

26TRCV00293 26TRCV00293

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 26TRCV00293 Hearing Date: August 4, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

AMER

MOTAMEDI, an individual; and MOTAMEDI DENTAL CORPORATION, a California corporation,

Plaintiff,

Case No.:

26TRCV00293

vs.

[Tentative]

Granted

TESLA,

INC.; and DOES 1 through 10, inclusive,

Defendants.

Hearing

Date: August
4, 2026

Moving Parties: Defendant Tesla Inc.

Responding

Party: Plaintiffs Amer Motamedi and
Motamedi Dental Corporation

HEARING: Motion to Compel
Arbitration

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel Arbitration.

BACKGROUND

On January 27, 2026, Plaintiffs Amer
Motamedi and Motamedi Dental Corporation filed the Complaint against Defendant
Tesla Inc, alleging causes of action for Violations of the Song-Beverly Act.

On March 23, 2026, Defendant filed
the Motion to Compel Arbitration.

On June 10, 2026, Defendant filed
the Reply.

On July 30, 2026, the Court received
Plaintiffs' Opposition.

JUDICIAL

NOTICE

The Court may take judicial notice of records
of (1) any court of this state or (2) any court of record of the United States

or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of “Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evid. Code § 452 subd. (c).)

Defendant requests that the Court take judicial notice of the Complaint. Plaintiff has not objected to this request. The Court grants this request pursuant to Evidence Code section 452 subdivision (d).

EVIDENTIARY OBJECTIONS

Plaintiff's

Objections to Defendant's Evidence

Overruled: 1, 2, 3, and
4

Sustained:

LEGAL STANDARD

The Federal Arbitration Act (the “FAA”) applies in both federal and state courts to contracts evidencing a transaction involving interstate commerce. (9 U.S.C. §§ 1-2; *Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (*Preston v. Ferrer* (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a “contract evidencing a transaction involving commerce.” (*Woolls v. Super. Ct.* (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2, “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.”

DISCUSSION

The instant case arises from the purchase of a 2023 Tesla Model X. The Online Motor Vehicle Order Agreement and the Retail Installment Sale Contract included an agreement to arbitrate.

Agreement to Arbitrate:

Please carefully read this provision, which applies to any dispute between you and Tesla, Inc. and its affiliates (together "Tesla").

If you have a concern or dispute, please send a written notice describing it and your desired resolution to .

If not resolved within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association ("AAA") under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. We will pay all AAA fees for any arbitration, which will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org.

The arbitrator may only resolve disputes between you and Tesla and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Tesla vehicles. In other words, you and Tesla may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy (such as injunctive or declaratory relief), then that claim or remedy (and only that claim or remedy) shall be severed and must be brought in court and any other claims must be arbitrated.

If you prefer, you may instead take an individual dispute to small claims court.

You may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc.; P.O. Box 15430; Fremont, CA 94539-7970, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.

(Kim Decl. Exhibit 1.)

Existence of Valid Arbitration Agreement and Claims Covered by Arbitration Clause

“[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) “In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) “To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Ass’n v. State (2006) 142 Cal.App.4th 198, 205.)

“[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Giuliano, supra, 149 Cal.App.4th at p. 1284.)

Plaintiffs contend that Defendant has not carried its burden to prove that they assented to the arbitration term of the Order Agreement. They argue that once the existence of the agreement is challenged, Defendant must prove by a preponderance of the evidence that an agreement to the arbitration term was formed, and that this question of contract formation is for the Court. Because the Order Agreement is an online clickwrap, Plaintiffs argue that its formation turns on whether the interface gave reasonably conspicuous notice of the term and whether Plaintiffs' action unambiguously manifested assent to it. (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 463-477.)

Plaintiffs further contend that Defendant's only evidence of the transaction, the declaration of Raymond Kim, is inadmissible and insufficient. They point out that Mr. Kim testifies in 2026 based only on his review of Tesla's file, without stating that he saw Plaintiffs' order or the ordering interface as it existed on September 19, 2023, and that paragraph 4 speaks only of what would have appeared beneath the Place Order button and what window would have opened had Plaintiffs clicked a hyperlink. (Kim Decl. ¶¶ 1-2, 4.) Plaintiffs argue that this conjecture lacks personal knowledge and foundation, and ask the Court to disregard it. They stress that Defendant, which alone controls its interface and records, submitted no screenshot of the page Plaintiffs encountered and no record that Plaintiffs opened the hyperlink to the Order Agreement. Plaintiffs add that the declaration concedes the order may have been placed by someone authorized to do so on their behalf, and that Defendant offers no evidence identifying who, if anyone, was authorized to bind Plaintiff Motamedi Dental Corporation to the clickwrap or that the corporation was presented with the term at all.

Plaintiffs therefore argue that Defendant has not carried its burden and that the Order Agreement cannot be enforced against either Plaintiff. As to Defendant's alternative request under the Sale Contract, Plaintiffs argue that it fails for the same reasons and a further one, because the Sale Contract names the Seller-Creditor as Tesla Motors, Inc. while the moving Defendant is Tesla, Inc., and only a party to an arbitration agreement may enforce it absent a recognized exception. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122.) Plaintiffs contend that Defendant neither addresses this discrepancy nor identifies any basis on which a differently named entity may enforce the

clause, so both the primary and alternative requests should be denied.

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) However, the burden is a three-step framework. “First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. (Ibid.) “For this step, it is not necessary to follow the normal procedures of document authentication.” (Ibid.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

Last, “if the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.)

Here, Defendant has provided both the Online Motor Vehicle Order Agreement and the Retail Installment Sale Contract, both of which include signed arbitration agreements. (Kim Decl. Exhibits 1-2.) Thus, Defendant has satisfied its initial burden. In response, Plaintiff has not provided a declaration or any other type of evidence showing that the parties did not enter into an agreement. Furthermore, while Plaintiff brings some argument regarding clickwrap contracts against the Online Motor Vehicle Order, Plaintiff's only argument against the RISC is that Tesla Motors and Tesla Inc. are separate entities. However, Tesla

Inc. and Tesla Motors are the same entity. Consequently, the Court finds that Plaintiff has failed to meet its burden regarding the RISC.

Therefore, the Court grants the Motion to Compel Arbitration.